

Court No. - 36

Case :- WRIT - C No. - 9314 of 2011

Petitioner :- Satendra Kumar Gupta

Respondent :- State Of U.P. And Others

Petitioner Counsel :- Sudhakar Singh

Respondent Counsel :- C.S.C., Shailendra Kumar Shukla

Hon'ble Ashok Bhushan,J.

Hon'ble Shyam Shankar Tiwari,J.

As prayed, put up on Tuesday, the 22nd of February, 2011 as fresh showing the name of Sri Pankaj Kumar Shukla as counsel for the respondents.

Order Date :- 17.2.2011

Rakesh

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Respondent Counsel :- C.S.C., Pankaj Kumar Shukla

Hon'ble Ashok Bhushan,J.

Hon'ble Shyam Shankar Tiwari,J.

Heard learned counsel for the petitioner.

By this writ petition, the petitioner has prayed for quashing the citation dated 24th January, 2011.

Learned counsel for the respondents, after obtaining instruction, submits that petitioner electricity connection was temporarily disconnected in the year 2008 and after six months on 25th April, 2009 the same was permanently disconnected. He submits that the recovery citation has been sent for recovery of the amount due prior to disconnection.

Learned counsel for the petitioner submits that petitioner has deposited an amount of Rs.30,000/- in the year 2007 which has not been adjusted.

The recovery being consequential to the bills issued by the respondents, the remedy of the petitioner is to approach the competent authority in accordance with the U.P. Electricity Supply Code, 2005. The correctness or incorrectness of the electricity bills cannot be adjudicated in writ proceedings. The petitioner may seek his remedy in accordance with the provisions of U.P. Electricity Supply Code, 2005.

The writ petition is dismissed with the above observation.

Order Date :- 22.2.2011

Rakesh